

		However, since all that Plaintiffs need are the organizational charts themselves, “all documents that evidence” the chart(s) is overly broad. Accordingly, the motion is GRANTED as to Request No. 42 but limited to the organizational chart(s) themselves.
5	Schwartz vs. Brunswick Corporation 2023-01331323	Plaintiff’s Motion for Protective Order The Motion for Protective Order by Plaintiff Martin Schwartz is DENIED as moot. The motion, which seeks a protective order regarding the depositions of Plaintiff and his wife, was filed on 7/31/24 without a proof of service. The hearing date was set for a date after trial was set to commence. Code of Civil Procedure section 2024.020(a) states, “Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Here, Plaintiff’s counsel did not obtain leave of Court for this motion to be heard after the discovery motion cutoff date. In the opposition filed on 11/25/24, Defendant’s counsel declares that Plaintiff appeared for deposition on 9/13/24, and that Defendant has withdrawn its request to take the deposition of Plaintiff’s wife. Therefore, the motion is moot as to the request for a protective order. As to the request for sanctions, Plaintiff has not filed a reply brief. Plaintiff failed to file a proof of service of the motion and failed to obtain a hearing date prior to the discovery motion cutoff date. Therefore, the request for sanctions is denied.
6	Geng vs. Han 2023-01320032	Plaintiff’s Motion for Terminating Sanctions or Alternatively Issue Evidentiary Sanctions Plaintiff Ivy Zihan Geng’s unopposed motion for terminating sanctions, or, alternatively, evidentiary, issue, and monetary sanctions against defendant Feijuan Xiong is GRANTED in part and DENIED without prejudice in part. Plaintiff’s request for judicial notice of Exhibits 1-15 is GRANTED.